

(46)

Tentative Ruling

Re: **California State University, Fresno Association, Inc. v. TWG, LLC**
Superior Court Case No. 26CECG00476

Hearing Date: August 6, 2026 (Dept. 501)

Motion: by Plaintiff for Order of Discharge and Fees

Tentative Ruling:

To grant.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

Plaintiff California State University, Fresno Association, Inc. ("Plaintiff") seeks an order under Code of Civil Procedure section 386 discharging it from liability for funds deposited with the court and dismissing it from this action.

The court finds that Plaintiff has complied with the requirements of section 386¹ and is entitled to be discharged from any further liability to Defendants TWG, LLC and Mentor Capital, Inc. ("Defendants") and dismissed from this action.

Plaintiff is entitled to an award of attorneys' fees and costs to cover the cost of bringing and litigating the present action. Under Code of Civil Procedure section 386.6, subdivision (a), "In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).)

Plaintiff requests attorneys' fees of \$3,706.00 and costs of \$927.89, totaling an award of \$4,633.89. Upon review of the billing records, this appears to be a reasonable amount of requested attorneys' fees and costs.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/04/26
(Judge's initials) (Date)

¹ Plaintiff's request for judicial notice is granted.

(47)

Tentative Ruling

Re: **Matthew Lieb v. Elizabeth Flores**
Superior Court Case No. 24CECG02305

Hearing Date: August 6, 2026 (Dept. 501)

Motions: Plaintiff's Motion for Leave to Amend Complaint

Tentative Ruling:

To find Plaintiff's motion for leave to amend the complaint is moot.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

Plaintiff, Matthew Lieb, ("Lieb") filed the motion to amend his complaint against defendant Lyft, Inc. ("Lyft") on March 10, 2026. On April 27, 2026, Lieb dismissed his claims against Lyft on April 27, 2026.

Accordingly, Lieb's motion seeking leave to file a first amended complaint is moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)